Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1290
Claimant:	Craig Gonzales
Adjuster:	Jerry Hanson

9-8-23 - Claim opened following report of a sideswipe collision during a lane change. Insured reports the other vehicle moved into their lane without signaling. Both drivers stopped at scene. Police report requested. Claimant reports back strain and is now represented by counsel; all further contact to go through their attorney's office.

9-14-23 - Spoke with insured to confirm the sequence of events. Insured states the adjacent vehicle was in the blind spot and did not check before merging. Photos of both vehicles received, showing damage to the driver-side rear quarter panel of insured vehicle and passenger-side front fender of the other vehicle. Liability appears to lean toward the other driver, pending review of the police report.

9-21-23 - Received letter of representation from claimant's attorney. Claimant alleges lower back strain and has been referred to a physical therapist. Medical records requested through authorization signed by claimant. Attorney requests that no recorded statement be taken from claimant without counsel present. Noted in file.

9-24-23 - Reviewed the police report. Responding officer documented the other driver as having changed lanes into the insured's path. Witness statement from a passenger in the insured vehicle is consistent with insured's account. Vehicle damage estimate is in progress. Medical bills and treatment notes from claimant's provider are still outstanding.

10-2-23 - Followed up with claimant's attorney regarding the outstanding medical records and the status of the physical therapy treatment. Attorney indicates the claimant is still attending sessions and expects to provide a summary of treatment shortly. Claim remains open with liability under review. Next step is to finalize the repair estimate and await the treatment summary before evaluating the injury component.

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Recorded Statement

Claim number:	C-1290
Statement of:	Craig Gonzales
Taken by:	Jerry Hanson
Date:	9-8-23

Q: Thank you for agreeing to give this recorded statement. Please state your full name for the record.

A: I'd rather just keep it to the accident, if that's okay.

Q: That's fine. For the record, can you confirm you were the driver of the vehicle involved in the collision in Houston, Texas?

A: Yes, I was driving my sedan.

Q: Walk me through what happened.

A: I was changing lanes on the freeway, checking my mirror first. I signaled, started to move over, and then a pickup came up beside me and clipped the rear quarter panel of my car. It pushed me back toward my lane.

Q: Did you see the pickup before the contact?

A: Not really. I think it was in my blind spot. I didn't hear it coming either.

Q: Did the other driver stop or say anything?

A: He pulled onto the shoulder. We exchanged information, and he said he didn't see me coming over.

Q: Were there any police officers or emergency crews at the scene?

A: Yes, an officer came out and wrote up a report. I have the report number at home.

Q: Did you feel any injuries right after the impact?

A: My neck felt stiff, but I thought I'd be fine. By that evening my lower back was really tight and sore.

Q: Have you sought medical treatment since the accident?

A: Yes, I went to urgent care the next day and they diagnosed a back strain. I've been doing physical therapy twice a week.

Q: Did you have any prior problems with your back?

A: I had some occasional stiffness years ago, but nothing that stopped me from working.

Q: Are you currently missing time from work?

A: Some. I've been on light duty and I've missed a few shifts.

Q: Is there anything else you think I should know?

A: Just that I'm trying to get back to normal and I want this handled fairly.

Q: Thank you. This concludes the statement.